

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DATED FILED: April 21, 2014

INDEX NO.: 302214/2014

LEZE KALAJA,

2014-015402

Plaintiff,

SUMMONS

against-
THE CITY OF NEW YORK and P.O. BRIAN
FRAGLIOSSI Shield No. 30892,

Plaintiff designates
Bronx County as Place of
Trial based on Place of
Incident

Defendants.

-----X
TO THE ABOVE NAMED DEFENDANT(S):

You are hereby summoned and required to serve upon plaintiff's attorneys an answer to the complaint in this action within twenty (20) days after the service of this summons, exclusive of the day of service, or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
March 10, 2014


YALKUT & ISRAEL
Attorneys for Plaintiff
865-B Walton Avenue
Bronx, New York 10451
718-292-2952

Defendants' Name and Address:

City of New York 100 Church Street, N.Y., N.Y. 10007
P.O. Brian Fragliossi - 1 Police Plaza, New York, N.Y.

Notice: The nature of this action is False imprisonment
Negligence, Personal injury, Civil Rights violations.

The Relief sought is Money damages

Upon your failure to appear, judgement will be taken against you by default in a sum within the jurisdictional limits of the Supreme Court and more than the jurisdiction of all inferior Courts.

2014 APR 21 PM 1:25
COUNTY CLERK
BRONX COUNTY
RECEIVED
3/11/13
2014 APR 21 PM 1:25

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
LEZE KALAJA,

Plaintiff(s)

VERIFIED COMPLAINT

-against-

Index No.: 302214/2014

THE CITY OF NEW YORK and P.O.
BRIAN FRAGLIOSI, Shield No. 30892,.Defendant(s),
-----X2014 APR 21 PM 1:25
COUNTY CLERK
BRONX COUNTY

RECEIVED

Plaintiff, as and for her Verified Complaint, by her attorney(s), Yalkut & Israel, alleges
the following upon information and belief:

1. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK,
(hereinafter referred to as "CITY") was a municipal corporation duly organized and
existing pursuant to the laws of the State of New York;
2. A notice of claim was served upon defendant, CITY, within ninety(90) days of the
occurrence and/or accrual of the cause of action;
3. More than thirty(30) days have elapsed since presentation of said claim, and defendant,
CITY, has failed to adjust and /or dispose of the claim presented therein;
4. This action is commenced within one year and ninety days of the date of the incident
and/or accrual of the cause of action;
5. That at all times hereinafter mentioned, the defendant, CITY, owns, operates, maintains
and controls THE NEW YORK CITY POLICE DEPARTMENT as a subsidiary;
6. That at all times hereinafter mentioned, the Plaintiff resides in the County of Bronx, City
and State of New York;

7. That at all times hereinafter mentioned, defendant, CITY, operates THE NEW YORK CITY POLICE DEPARTMENT;

8. That at all times hereinafter mentioned, the defendant, P.O. BRIAN FRAGLIOSSI, was employed by the New York City Police Department;

9. That at all times hereinafter mentioned, plaintiff owns premises 1200 Pelham Parkway South, County of Bronx, City and State of New York;

FIRST CAUSE OF ACTION-FALSE IMPRISONMENT:

10. On March 1, 2013 at approximately 12:01 p.m. of that day, plaintiff was lawfully at or near the back yard of premises 1200 Pelham Parkway South, Bronx, New York when after noticing that her son was in physical distress, called the EMS requesting an ambulance to the hospital; the EMS and the defendant, P.O. Brian Fragliossi, and other members of the POLICE DEPARTMENT of defendant, CITY OF NEW YORK, responded to said location;

11. The Plaintiff was lawfully at said location;

12. The Plaintiff was falsely imprisoned at the scene of the occurrence;

13. As a result of the aforementioned, plaintiff suffered emotional trauma, feared for her life, sustained severe and serious personal injuries and other consequential damages;

14. The Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;

15. No criminal charges were brought against the Plaintiff;

16. As a result of the foregoing, the plaintiff has been damaged in a sum within the

Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts;

SECOND CAUSE OF ACTION-NEGLIGENT TREATMENT:

- 8 17. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "15" herein as if more fully set forth herein;
18. At the aforementioned time and place, plaintiff was negligently treated by various police officers employed by the defendant, CITY OF NEW YORK, including the defendant, P.O. Brian Fragliossi;
19. Said police officers were acting within the course and scope of their employment with defendants;
20. The Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;
21. As a result of the foregoing, the plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts;

THIRD CAUSE OF ACTION-BATTERY

- 8 22. The Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "21" herein as if more fully set forth at length:
23. At the aforementioned time and place, plaintiff was battered by defendants without any provocation on the part of the plaintiff;
24. As a result of the aforementioned, plaintiff sustained serious and severe permanent personal injuries;
25. Plaintiffs intend to claim punitive damages for all of the causes of action interposed herein;

26. As a result of the foregoing, plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts;

FOURTH CAUSE OF ACTION-INVASION OF PRIVACY:

27. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "26" herein as if more fully set forth at length:
28. The aforementioned occurrence constituted an invasion of the privacy of plaintiff, *.
29. As a result of the foregoing, Plaintiff sustained severe and serious emotional and personal injuries and other consequential damages;
30. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;
31. As a result of the foregoing the plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts;

FIFTH CAUSE OF ACTION-CIVIL RIGHTS VIOLATION:

32. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "31" herein as if more fully set forth at length:
33. As a result of the aforementioned occurrence, plaintiff was deprived of her civil rights under the Constitution of the State of New York and the Constitution of the United States, as well as other State ordinances statutes, codes and rules, including but not limited to 42 USC §1981, §1983, §1985 and 28 USC § 1343;
34. As a result of the foregoing, the plaintiff suffered emotional trauma, feared for her life, sustained severe and serious emotional and personal injuries and other consequential

damages;

35. Plaintiff intends to claim punitive damages for all of the causes of action interposed

herein;

36. As a result of the foregoing the plaintiff has been damaged in a sum within the

Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts;

SIXTH CAUSE OF ACTION-NEGLIGENCE

37. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1"

through "36" herein as if more fully set forth at length:

38. The aforementioned occurrence took place by reason of the negligence of defendants, its agents, servants and/or employees, including various police officers;

39. As a result of the foregoing, Plaintiff suffered emotional trauma, feared for her life, sustained severe and serious personal injuries and other consequential damages.

40. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein;

41. As a result of the foregoing, plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts;

SEVENTH CAUSE OF ACTION-PRIMA FACIE TORT

42. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1"

through "41" herein as if more fully set forth at length:

43. Defendants solely to harm plaintiff, and without justification, intentionally manhandled

and wrenched, threw the plaintiff to the ground and/or otherwise acted to harm said

plaintiff, causing pecuniary loss to plaintiff;

44. The plaintiff is seeking punitive damages in all causes of action herein;

45. The plaintiff is seeking punitive damages in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

WHEREFORE, the Plaintiff demands judgment against the defendants on each of the aforementioned Causes of Action in a sum within the jurisdictional limits of the Supreme Court and in excess of the jurisdictional limits of all inferior Courts, together with the costs and disbursements of this action.

Dated: Bronx, New York
March 10, 2014

YALKUT & ISRAEL, ESQS.
865-B Walton Avenue
Bronx, New York 10451
718 292-2952
718 993-1542 (fax)

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

ss:

COUNTY OF BRONX)

The undersigned, being duly sworn, deposes and says that the deponent is the plaintiff in the within action; that deponent has read the foregoing SUMMONS AND VERIFIED COMPLAINT; that the same is true to deponent's own knowledge; except as to those matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

Leze Kalaja
LEZE KALAJA

Sworn to before me this 13th day
of March, 2014

Nicole M. Harley
NOTARY PUBLIC

NICOLE M. HARLEY
Notary Public State of New York
No. 02HA6068417
Qualified in New York/Bronx
Commission Expires Dec. 31, 2017

LAW OFFICES
OF
YALKUT & ISRAEL
865-B Walton Avenue
Bronx, New York 10451
(718) 292-2952

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No. 302214/2014

LEZE KALAJA,

Plaintiff(s),

-against-

THE CITY OF NEW YORK and P.O. BRIAN FRAGLIOSSI

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

YALKUT & ISRAEL
Attorneys for Plaintiff(s)
865-B Walton Avenue
Bronx, New York 10451
718 292-2952
718 993-1542 (Fax)

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State certifies that upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: April 7, 2014

Signature:

Print Signature Name:

ARON S. YALKUT

TO:
Attorney(s) for

Service of a copy of the within
admitted.

is hereby

Dated:

Attorney(s) for

PLEASE TAKE NOTE

that the within is a (certified copy of a
entered in the Office of the Clerk of the within named court on
that an order of which the within is a true copy will be presented for settlement
to the Hon. , one of the judges of the within named court,
on , 20 , at M.

20

YALKUT & ISRAEL
Attorneys for Plaintiff(s)
865-B Walton Avenue
Bronx, New York 10451
(718) 292-2952